

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gregory Morril	Team: Team # 5	CCRB Case #: 200607808	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 04/03/2006 1:04 AM	Location of Incident: inside the lobby of § 87(2)(b)	18 Mo. SOL 10/3/2007	Precinct: 60		
Date/Time CV Reported Thu, 06/15/2006 8:55 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/15/2006 8:55 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Justin Farren	14035	930127	PSA 1
2. POF Christin Reyes	10678	925978	PSA 1
3. POM Fadi Mansour	29211	928698	PSA 1
4. POM Erik Hirsch	17311	930356	PSA 1
5. An officer			
6. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT John Todaro	05234	903307	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A . POM Justin Farren	Abuse: Inside § 87(2)(b) in Brooklyn, Police Officer Justin Farren stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM Erik Hirsch	Force: Inside § 87(2)(b) in Brooklyn, Police Officer Erik Hirsch used physical force against § 87(2)(b)	B . Exonerated
C . POM Justin Farren	Force: Inside § 87(2)(b) in Brooklyn, Police Officer Justin Farren used physical force against § 87(2)(b)	C . Exonerated
D . POF Christin Reyes	Force: Inside § 87(2)(b) in Brooklyn, Police Officer Christin Reyes used physical force against § 87(2)(b)	D . Exonerated
E . POF Christin Reyes	Force: Inside § 87(2)(b) in Brooklyn, Police Officer Christin Reyes struck § 87(2)(b) with a blunt instrument.	E . Unfounded
F . POM Justin Farren	Force: Inside § 87(2)(b) in Brooklyn, Police Officer Justin Farren struck § 87(2)(b) with a gun.	F . Unfounded
G . POM Fadi Mansour	Abuse: Inside § 87(2)(b) in Brooklyn, Police Officer Fadi Mansour frisked § 87(2)(b)	G . Exonerated
H . POM Fadi Mansour	Abuse: Inside § 87(2)(b) in Brooklyn, Police Officer Fadi Mansour searched § 87(2)(b)	H . Exonerated
I . Officers	Force: Inside § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	I . Exonerated

Officer(s)	Allegation	Investigator Recommendation
J . An officer	Discourtesy: Inside § 87(2)(b) in Brooklyn, an officer spoke obscenely and/or rudely to § 87(2)(b)	J . Officer(s) Unidentified
K . POM Justin Farren	Discourtesy: Inside the PSA 1 stationhouse in Brooklyn, Police Officer Justin Farren spoke obscenely and/or rudely in the presence of § 87(2)(b)	K . Unfounded

Synopsis

On April 3, 2006, § 87(2)(b) and § 87(2)(b) exited an elevator into the lobby of § 87(2)(b) in Brooklyn. § 87(2)(b) had a loaded .380 caliber gun tucked into his rear waistband. As § 87(2)(b) walked out of the elevator, Police Officers Justin Farren, Christin Reyes, Fadi Mansour, and Erik Hirsch were waiting for the elevator in order to conduct a vertical patrol of the building. As § 87(2)(b) passed him, Officer Farren observed the handle of the gun sticking out of § 87(2)(b)'s waistband and immediately yelled out what he had observed and attempted to stop § 87(2)(b) and § 87(2)(b) (**allegation A**). § 87(2)(b) attempted to flee from the officers and exit the building and was physically resisting arrest. Officers Hirsch, Reyes, and Farren attempted to grab onto § 87(2)(b)'s arms and eventually wrestled him onto the ground (**allegations B, C, and D**). § 87(2)(b) alleged that Officer Reyes struck § 87(2)(b) in the face with handcuffs and Officer Farren struck him with a gun (**allegations E and F**). As Officers Reyes, Hirsch, and Farren were struggling with § 87(2)(b), § 87(2)(b) attempted to physically intervene in the arrest and aid § 87(2)(b). Officer Mansour held § 87(2)(b) back and frisked him (**allegation G**). During this frisk, Officer Mansour felt a hard object in § 87(2)(b)'s pocket that he believed could have been a gun. Officer Mansour reached into this pocket and removed the item, which turned out to be a cell phone (**allegation H**). Once § 87(2)(b) was handcuffed, his § 87(2)(b) attempted to push past two officers and approach her son. Two of the officers—who § 87(2)(b) could not identify—pushed § 87(2)(b) away from the crime scene (**allegation I**). As § 87(2)(b) walked away, one of these unidentified officers allegedly asked her, “Where the fuck are you going?” (**allegation J**). When § 87(2)(b) went to the PSA 1 stationhouse in Brooklyn later in the night, she alleged that she heard Officer Farren tell other officers that he struck § 87(2)(b) with § 87(2)(b)'s “own fucking gun” (**allegation K**).

§ 87(2)(g)

It is therefore recommended that **allegation A** be closed as **exonerated**. In his initial statements to medical personnel, § 87(2)(b) claimed that an injury to his head was caused by falling onto the ground and striking his head during his arrest. § 87(2)(b) did not make any allegations of police misconduct to his doctors and never filed a complaint about this incident. This complaint was filed by § 87(2)(b) over two months after the date of occurrence. § 87(2)(g)

It is therefore recommended that **allegations B, C, and D** be closed as **exonerated** and **allegations E and F** be closed as **unfounded**. § 87(2)(g)

It is therefore recommended that **allegations G and H** be closed as **exonerated**. § 87(2)(g)

It is therefore recommended that **allegation I** be closed as **exonerated**. § 87(2)(g)

It is therefore recommended that **allegation J** be closed as **officer(s) unidentified**. § 87(2)(g)

It is therefore recommended that **allegation K** be closed as **unfounded**.

§ 87(2)(g)

Additionally, this complaint was filed over two months after the date of occurrence.

Summary of Complaint

§ 87(2)(b) § 87(2)(b)-old black woman, filed a complaint with the CCRB via telephone on June 15, 2006 (encl. 4) and was interviewed at the CCRB on June 26, 2006 (encl. 5). § 87(2)(b)

§ 87(2)(b) stated that on April 3, 2006, she was walking through the parking lot of her building when she received a phone call from § 87(2)(b) a good friend of § 87(2)(b)'s son, § 87(2)(g). § 87(2)(b) had just returned from a local bodega to buy some household items. § 87(2)(b) did not know that § 87(2)(b) was in the neighborhood when she left her apartment to go shopping and does not know what he was doing in the building. § 87(2)(b) does not live with § 87(2)(b) anymore, because he was evicted from New York City Housing Authority property after he was arrested for selling drugs. At that time, the Housing Authority brought § 87(2)(b) to court and she was forced to remove his name from the lease or else lose her apartment. § 87(2)(b) screamed into the phone that police officers had apprehended her son. § 87(2)(b) approached the lobby of § 87(2)(b) in Brooklyn and could see through the window that § 87(2)(b) was inside directly in front of the mailboxes about 25 feet away. At first, § 87(2)(b) stated that she could see § 87(2)(b) standing there with ten to twelve officers surrounding him. He looked "as though he wanted to talk" with the officers and then his hands went up. As § 87(2)(b) tried to enter the lobby, a white male officer stopped her and said that she couldn't enter inside due to a police investigation. § 87(2)(b) insisted to this officer that her son was inside the lobby at which point, she heard the word "gun" and saw that § 87(2)(b)'s hands were in the air. § 87(2)(b) is not sure who said "gun" but guessed that it was an officer who she identified as "Officer Farren" and who this investigation confirmed was Officer Justin Farren. § 87(2)(b) believed that Officer Farren had said "gun," because she saw him crouched down and then come back up after saying it. § 87(2)(b) said that she never saw a gun at all or a gun in § 87(2)(b)'s hands. In her intake statement to the CCRB, § 87(2)(b) stated that Officer Farren frisked § 87(2)(b) and removed a gun from his rear waistband.

In her sworn statement to the CCRB, § 87(2)(b) claimed that she only saw Officer Farren remove an unknown object from § 87(2)(b) and then bring his hand down and hit § 87(2)(b) with this unknown object. § 87(2)(b) heard a noise but didn't specifically see Officer Farren's hand hit § 87(2)(b)'s head and only saw a hand with the gray T-shirt come down over § 87(2)(b)'s head. § 87(2)(b) was not able to see Officer Farren's face, because his back was turned away. After Officer Farren struck him, § 87(2)(b) looked stunned and shook his head but did not fall down. § 87(2)(b) later told § 87(2)(b) that Officer Farren struck § 87(2)(b) over his right eye with a gun that § 87(2)(b) had been carrying. Then a female officer dressed in uniform "popped the shit out of him." § 87(2)(b) identified this officer as one of two different female officers dressed in uniform that she described. § 87(2)(b) said that both of these officers were either white or Hispanic and one of them was 5'2" tall while the other was shorter. § 87(2)(b) later learned from § 87(2)(b) that this officer had struck him with her handcuffs under the left eye by his cheekbone. At the time of the incident, § 87(2)(b) could see that the female officer had something in her hand when she struck him, but she couldn't see what it was. § 87(2)(b) did not see how § 87(2)(b) responded to the second blow to his head but said that he was still standing up and didn't immediately bleed. § 87(2)(b) said that § 87(2)(b) was "just standing there" with his hands in the air, when the officers struck him, and he did not resist the officers. The only movement that § 87(2)(b) saw was his head moving as though he was trying to speak with the officers. § 87(2)(b) denied that she saw § 87(2)(b) struggling with the officers when she first saw him and could not hear if he was saying anything to the officers or if the officers were saying anything to him.

At this point, § 87(2)(b) ran towards another entrance to the building, as she saw six to seven officers picking § 87(2)(b) up off of the ground. It looked as though they were going to pick him up and throw him to the ground, but § 87(2)(b) did not see them do so, because she ran away. § 87(2)(b) ran up one flight of stairs in this second entrance to the building and walked 30 feet through a hallway and came back down a different staircase leading into the lobby where § 87(2)(b) had been. In total, § 87(2)(b) estimated that she was gone for one minute. The first thing that § 87(2)(b) noticed was § 87(2)(b)'s face looked like "Freddie Cougar got a hold of him." § 87(2)(b) was standing on his feet with his hands likely cuffed behind his back and § 87(2)(b) does not know if he ever fell to the ground.

Based on § 87(2)(b)'s instincts, she started to run towards her injured son. There was a female officer standing before § 87(2)(b). (§ 87(2)(b) stated that she may have been the same officer who hit § 87(2)(b). Two female officers grabbed § 87(2)(b) and pinned her up against a wall. § 87(2)(b) yelled out, "What the fuck have you done to my son!" The female officer replied that § 87(2)(b) had a gun. As the officers were "getting rough" with § 87(2)(b) she decided to walk away towards the elevator. § 87(2)(b) admitted that she pushed the female officer or tried to grab her left arm, when she was running towards § 87(2)(b). The female officer's back was facing § 87(2)(b) and § 87(2)(b) was trying to get her out of the way in order to get towards § 87(2)(b). § 87(2)(b) admitted that she should not have pushed the officer and that she could have been arrested for assault and blamed her transgression on "mother's instincts." As § 87(2)(b) walked towards the elevator, the officer yelled out, "Where the fuck are you going?" but allowed her to walk away. § 87(2)(b) rode the elevator upstairs and then came back outside through a different exit. § 87(2)(b) said that her intention was to get away from the officers and to get outside and see § 87(2)(b) again.

As the officers were placing § 87(2)(b) inside the ambulance, § 87(2)(b) heard an officer—who she could only describe as a black man—say to him, "You're lucky it wasn't me who caught you. I would have shot you." About twenty minutes to one hour later, § 87(2)(b) went to the PSA 1 stationhouse and heard Officer Farren speaking to other officers and say, "...and that's why I hit him with his own fucking gun!" § 87(2)(b) decided to not confront Officer Farren because she didn't want the officers to mistreat § 87(2)(b) in retaliation. § 87(2)(b) could not identify any of the officers who Officer Farren was speaking with and did not know if any of the officers from the scene of this incident had been present. § 87(2)(b) later spoke with Officer Farren. § 87(2)(b) asked Officer Farren for his name, and he provided it. § 87(2)(b) described Officer Farren as a white man, 5'8" to 5'10" tall, medium build, early thirties, and dressed in plainclothes with a gray T-shirt.

§ 87(2)(b) said that this complaint was filed over two months late, because she kept telling § 87(2)(b) to file the complaint and he never did so. Once he failed to do so, § 87(2)(b) decided to attempt to file the complaint on his behalf.

Results of Investigation

§ 87(2)(b) a § 87(2)(b) black man, provided statements regarding this incident to medical personnel. According to a FDNY ambulance call report, § 87(2)(b) was alert and oriented upon being picked up by an ambulance on § 87(2)(b), at 1:00 a.m., and had a laceration to his head. Police officers at the scene reported that § 87(2)(b) was resisting arrest and fell onto the ground while fighting and hit his head on the floor. § 87(2)(b) did not lose consciousness. § 87(2)(b) reportedly did not deny the officers' version of the incident (encl. 6a). § 87(2)(b) reportedly had no additional complaints or pain. At 1:20 a.m., at § 87(2)(b), § 87(2)(b) reportedly complained to an emergency room triage nurse that he had suffered a laceration to his left eyebrow from a "fall" (encl. 6c).

The CCRB interviewed § 87(2)(b) at Riker's Island on August 7, 2006 (encl. 7). His criminal defense attorney, § 87(2)(b) was also present. § 87(2)(b) stated that on April 3, 2006, he went to the apartment building of his mother at § 87(2)(b) in Brooklyn with his friend § 87(2)(b). § 87(2)(b) knocked on the door of his mother's home to find that she was not currently inside. § 87(2)(b) then went to see his friend § 87(2)(b), who lives inside an unknown apartment in § 87(2)(b) in Brooklyn. At 12:46 a.m., § 87(2)(b) and § 87(2)(b) took the elevator to the lobby of § 87(2)(b) in Brooklyn and started to walk towards the exit. As they were walking through the lobby, § 87(2)(b) saw a group of about six police officers walking into the building. § 87(2)(b) recognized an officer—identified by investigation as Officer Christin Reyes—and some of the other officers from previous encounters but did not know any of the officers' names.

§ 87(2)(b) and § 87(2)(b) attempted to walk out the door, when Officer Reyes pushed § 87(2)(b) in the chest back into the lobby and asked him for his ID. § 87(2)(b) provided his ID, a PBA card, and a

mini-badge. § 87(2)(b)'s ID has the address of his mother's apartment listed on it and the PBA card and mini-badge were provided to him by a family friend who is a police officer. The officers did not ask for § 87(2)(b)'s ID. Officer Reyes asked if she could search § 87(2)(b) and he said that she couldn't. The officers were about to allow him to leave, when Officer Reyes yelled out that she had previously arrested § 87(2)(b). § 87(2)(b) did not remember Officer Reyes ever arresting him before but said that she once stopped him for walking his dog without a leash outside the building.

§ 87(2)(b) said that his previous arrest had nothing to do with the situation at hand and attempted to walk away. An officer—identified as Officer Erik Hirsch—shoved § 87(2)(b) in the chest backwards and he fell into an officer standing behind § 87(2)(b). This officer, who § 87(2)(b) could not see or identify, pushed § 87(2)(b) forward into Officer Hirsch, who punched § 87(2)(b) in the right eye one time and a second time at another unknown location on his face. After being punched, § 87(2)(b) stumbled backwards and attempted to block his face with his arms and hands in order to protect himself. § 87(2)(b) said that the officers were yelling at him to give them his hands but that he couldn't do so, because he was being hit. Officer Reyes hit § 87(2)(b) under his right eye one or two times using her handcuffs as if they were "brass knuckles." § 87(2)(b) said, "They pulled out guns—I got hit in my head with a gun. The officer had a gun in his hand. He hit me in the head." When § 87(2)(b) was asked later in the interview if he was carrying a gun, § 87(2)(b) the attorney, instructed him to not answer the question. § 87(2)(b) refused to say whether or not he was carrying a gun but said that an officer—identified as Officer Farren—hit § 87(2)(b) in the head above the right eyebrow and below the left eye with a gun when he turned around. § 87(2)(b) said that he did not know where the gun came from and did not know what part of the gun was used to strike him. After being struck in the face, his eyes started to swell up and fill with blood, forcing him to close his eyes. § 87(2)(b) felt himself being hit in the face and on all parts of his body after this point but could not see who was doing so or describe precisely where these blows landed. § 87(2)(b) estimated that he was struck a total of 15 to 20 times. Eventually, one of the officers pulled § 87(2)(b) onto the ground and he was quickly handcuffed. § 87(2)(b) said that there was no struggle while he was on the ground. § 87(2)(b) fell onto his knees when he went down to the ground and never hit his face on the ground or injured himself falling. Throughout the course of this incident, none of the officers ever searched or frisked § 87(2)(b) until he was handcuffed and an unknown officer either frisked or searched him. § 87(2)(b) denied that he was ever resisting arrest or attempting to fight with the officers aside from blocking his face with his hands to protect himself. § 87(2)(b) was present for this entire incident and was asking the officers why they were beating him if he wasn't resisting arrest.

EMS responded to the scene and transported him to § 87(2)(b) with Officer Reyes and another unknown officer. § 87(2)(b) was fading into and out of consciousness when he was being led to the ambulance and did not hear any officers saying anything to him as he entered the vehicle. He heard his mother asking the officers what was going on, but he could not hear or see anything that the officers were saying or doing to her. § 87(2)(b) said that there were various people who he vaguely knows standing outside the lobby who later told him that they saw what happened, but he only knew their first names: § 87(2)(b), § 87(2)(b), § 87(2)(b) and roughly three other people. § 87(2)(b)'s mother later told him that she was coming from the store as he was being hit. § 87(2)(b) sustained a laceration above his right eye, a "hole" under his right eye from being struck with handcuffs, swelling to both eyes and his cheekbone, and general pain throughout his head.

§ 87(2)(b) said that this complaint was filed late, because he did not know how to file the complaint, he was incarcerated, and he was focusing on receiving medical treatment.

§ 87(2)(b) described Officer Hirsch as a 6'1" tall white man with a stocky build. Officer Reyes is a 5'8" white or Hispanic woman with a slim build. Officer Farren is a 5'7" white man with an unknown build. All of the officers were dressed in plainclothes. § 87(2)(b) claimed that three additional white male officers in plainclothes, who he could not describe, were also present for this incident.

§ 87(2)(b) provided a telephone statement to the CCRB on August 10, 2006 (encl. 8). § 87(2)(b) who declined to provide his race or date of birth to the CCRB. According to a stop and frisk report completed for § 87(2)(b) in regard to this incident, § 87(2)(b) is a § 87(2)(b) black man.

§ 87(2)(b) stated that he and § 87(2)(b) are close friends and were raised together. On April 3, 2006, § 87(2)(b) said that he accompanied § 87(2)(b) to a building—he was not sure of the exact address—to visit § 87(2)(b)'s two girlfriends: § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not know their last names or what apartments they lived in. § 87(2)(b) said that they did not visit the apartment of § 87(2)(b)'s mother on this date and that § 87(2)(b) doesn't go to her home. When § 87(2)(b) and § 87(2)(b) exited the elevator of the building, there were six to seven police officers dressed in plainclothes standing in the lobby. It looked as if the officers were looking for someone, because there were so many of them and they were talking on their radios. The officers stopped § 87(2)(b) and § 87(2)(b) by blocking the exit. Two officers grabbed onto § 87(2)(b) and two grabbed onto § 87(2)(b) but § 87(2)(b) could not describe any of these officers except to say that one of the officers who grabbed him was possibly a woman. § 87(2)(b) did not remember specifically what the officers were saying, except that they were asking a lot of questions, such as "Where are you going?" The female and an unknown male officer patted down § 87(2)(b)'s body and went into his pocket and removed everything therein: money, ID, and "ran" his name. § 87(2)(b) did not see the officers put his name into a computer terminal or make a radio transmission; they just looked at his ID. § 87(2)(b) couldn't see which officers were searching § 87(2)(b) but he was able to see that officers were searching him. When § 87(2)(b) was asked if § 87(2)(b) was carrying a gun, he replied, "To my knowledge, I'm not sure." § 87(2)(b) was not sure exactly how the situation escalated, but suddenly an officer—identified as Officer Farren—hit § 87(2)(b) in the head with the "boot" (handle) of a gun more than two times. § 87(2)(b) did not know where this gun came from. Officer Farren was holding the gun in his left hand and § 87(2)(b) could not see Officer Farren's left hand. He wasn't sure if Officer Farren hit § 87(2)(b) in any other way aside from with the gun. § 87(2)(b) said that none of the other officers hit § 87(2)(b) but were just holding onto him and surrounding him, while Officer Farren struck him. § 87(2)(b)'s knees buckled and he would have fallen onto the ground, if the officers were not holding him up. § 87(2)(b) said that § 87(2)(b) was already restrained in two sets of handcuffs when Officer Farren was hitting him with the gun. Unknown officers dropped § 87(2)(b) onto the ground, which caused him to hit his face on the ground. The impact of § 87(2)(b)'s face on the ground caused him to bleed profusely and made § 87(2)(b) "look like shit." While Officer Farren was hitting § 87(2)(b), § 87(2)(b) pleaded with the female officer to make the other officers stop.

§ 87(2)(b) called § 87(2)(b)'s mother, who came running towards the lobby. § 87(2)(b) could see her outside, but the officers standing outside would not let her enter. § 87(2)(b) could see the officers saying something to § 87(2)(b) but he couldn't hear what they were saying. § 87(2)(b) attempted to go up one set of stairs and come downstairs via another entrance to get to § 87(2)(b). § 87(2)(b) was not sure of § 87(2)(b)'s exact injuries but said that both of his eyes were black and blue. § 87(2)(b) described Officer Farren as a white man, 6'2" tall, short haircut, and 205 pounds.

POLICE OFFICER INTERVIEWS

Police Officer Justin Farren (PSA 1) Subject Officer

Police Officer Justin Farren was interviewed at the CCRB on May 10, 2006 (encl. 14). Officer Farren, a § 87(2)(b)-old white man, is § 87(2)(b) and weighs § 87(2)(b). Officer Farren has been assigned to the anti-crime team of PSA 1 for two-and-a-half years and spent one year previously in the conditions team of PSA 1. On April 2, 2006, Officer Farren was assigned to anti-crime with Officers Erik Hirsch, Christin Reyes, and Fadi Mansour and Sgt. John Todaro. Officer Farren worked from 5:30 p.m. on April 2, 2006 until 7:05 a.m. on the following day and was dressed in plainclothes. Officer Farren's memo reflects that at 12:50 a.m. on April 3, 2006, he conducted a vertical patrol at § 87(2)(b). At § 87(2)(b), Officer Farren arrested § 87(2)(b) and § 87(2)(b) and noted that § 87(2)(b) sustained a laceration to his eye and was transported to § 87(2)(b). At 1:20 a.m., Officer Farren arrived at the PSA1 stationhouse and completed paper work until ending his tour at 7:05 a.m.

Officer Farren completed arrest and complaint reports and a supporting deposition regarding this arrest. In the arrest and complaint reports, Officer Farren wrote that § 87(2)(b) was observed in possession of a

.380 semiautomatic handgun with a defaced serial number. During his apprehension, § 87(2)(b) struggled, “flail[ed] arms,” and refused to be handcuffed. § 87(2)(b) was charged § 87(2)(b). In a supporting deposition to the arrest, Officer Farren stated that he recovered the gun loaded with six rounds of ammunition from § 87(2)(b)’s person (encl. 11). In a medical treatment of prisoner report, Officer Farren wrote that § 87(2)(b) had a “small” laceration above his right eye (encl. 12).

At the CCRB, Officer Farren testified that on April 3, 2006, he was waiting for the elevator in the lobby of § 87(2)(b) to conduct a vertical patrol. When the elevator arrived, two men § 87(2)(b) and § 87(2)(b) took a step out of the elevator and spotted the officers with their shield displayed and standing three feet away and stopped and said “oh.” § 87(2)(b) and § 87(2)(b) exited the elevator and turned right in order to exit the lobby. As § 87(2)(b) passed him, Officer Farren observed three inches of the silver handle of a gun sticking out of § 87(2)(b)’s right rear pocket. Officer Farren yelled out, “Police! Don’t move!” and yelled out, “Gun!” Officers Farren and Hirsch grabbed onto § 87(2)(b) to restrain him, but § 87(2)(b) immediately started struggling by punching, swinging, and kicking the officers. § 87(2)(b) was trying to make his way out of the building. Officer Reyes approached § 87(2)(b) and grabbed onto him from behind. The officers then lost their footing and § 87(2)(b) and them fell onto the ground. Upon hitting the ground, § 87(2)(b) hit his head on a hard tile floor. Before § 87(2)(b) fell onto the ground, Officer Farren was able to remove the gun from § 87(2)(b)’s pocket and place it into his own pocket. Officer Farren never removed his handcuffs and never struck § 87(2)(b) with a gun. Officer Farren never saw any other officer strike § 87(2)(b) with handcuffs or their fists and said that the officers were just grabbing onto his arms. Officer Farren did not interact with § 87(2)(b) and never saw him being frisked. Officer Farren called Sgt. Todaro to the scene via point to point radio and also called for an ambulance. § 87(2)(b)’s mother § 87(2)(b) came downstairs at one point and asked the officers what they had done to her son. § 87(2)(b) did not attempt to get close to her son. Officer Farren did not see § 87(2)(b) at the stationhouse and did not say that he struck § 87(2)(b) with his own “fucking” gun. Officer Farren had never seen § 87(2)(b) before this incident.

Police Officer Christin Reyes (PSA 1) Subject Officer Stop and Frisk Report

Police Officer Christin Reyes completed a stop, question, and frisk report for § 87(2)(b) (encl. 16). In the report, Officer Reyes indicated that § 87(2)(b) was stopped on suspicion of criminal possession of a weapon. § 87(2)(b) was stopped and frisked due to “furtive movements” and searched due to the presence of a “hard object.” § 87(2)(b)’s demeanor was described as “hostile.”

CCRB Statement

Police Officer Christin Reyes was interviewed at the CCRB on May 9, 2007 (encl. 17). Officer Reyes, a § 87(2)(b)-old Hispanic woman, is § 87(2)(b). Officer Reyes is currently assigned to the 69th Precinct Detective Squad and retains the rank of police officer. At the time of this incident, Officer Reyes was assigned to PSA 1, where she worked for three years in the anti-crime team and two years in the conditions team. Officer Reyes was dressed in plainclothes and assigned to an unmarked vehicle. Officer Reyes’s memo book notes that at 12:40 a.m., she conducted a vertical patrol at § 87(2)(b). At 12:45 a.m., Officer Reyes had two men stopped in the lobby of the location. At 1:04 a.m., Officer Farren had one person arrested and recovered a gun. At § 87(2)(b) Officer Reyes was en route § 87(2)(b).

Officer Reyes testified that she entered the lobby of § 87(2)(b) in Brooklyn, on April 3, 2006, at approximately 12:40 a.m., in order to conduct a vertical patrol. Officers Reyes, Farren, and Mansour were waiting for the elevator to arrive. Sgt. Todaro was not present and arrived only later. When the elevator door opened, the officers saw § 87(2)(b) and another man § 87(2)(b) take a step to exit the elevator from five feet away. § 87(2)(b) stopped after one step and said, “Oh shit.” As § 87(2)(b) turned to walk out of the elevator, Officer Farren yelled out, “Gun!” Officer Reyes did not personally see the gun, although she saw § 87(2)(b). Officers Farren and Hirsch attempted to grab onto § 87(2)(b). Officer Reyes was not aware of what Officer Mansour was doing. § 87(2)(b) was struggling with Officers Farren and Hirsch and attempting to reach the exit of the building. Officer Farren was able to grab onto one of § 87(2)(b)’s arms and Officer Hirsch was attempting to grab onto the other arm, but they were

still not able to handcuff § 87(2)(b). Officer Reyes had one of her handcuffs attached to one of § 87(2)(b)'s wrists (she could not recall which one), but she did not know if any of the other officers had their handcuffs removed. Officer Reyes was still not able to handcuff § 87(2)(b) and then jumped onto § 87(2)(b)'s back and wrapped her legs around his waist and grabbed onto his shoulder. With her right arm, Officer Reyes tried to "hook" onto § 87(2)(b)'s arm and bring it behind his back. The officers were still unable to restrain § 87(2)(b). Eventually, the weight of everyone grabbing onto § 87(2)(b) caused everyone to tip forward. § 87(2)(b) fell headfirst onto the ground and struck his forehead on the ground, which caused a laceration. Officer Reyes fell directly behind § 87(2)(b) but was not injured. Upon hitting the ground, § 87(2)(b) stopped resisting the officers and was handcuffed. Once § 87(2)(b) was on the ground, no officer struck § 87(2)(b). At some point during the struggle before § 87(2)(b) struck the ground, Officer Farren yelled out that he had recovered the gun from § 87(2)(b)'s person. Officer Reyes denied that she struck § 87(2)(b) with handcuffs.

Before this struggle commenced, Officer Reyes and the other officers had not asked § 87(2)(b) or § 87(2)(b) for ID. Officer Reyes denied that she frisked § 87(2)(b) and did not have any recollection of anyone else doing so. After viewing a computerized copy of the stop and frisk report for § 87(2)(b) completed by Officer Reyes, Officer Reyes still had no recollection and said that she may have completed the form on behalf of another officer. § 87(2)(b) was yelling out while the officers were handcuffing § 87(2)(b) but did not become physically involved. A woman, who Officer Reyes later learned was § 87(2)(b)'s mother § 87(2)(b) came downstairs. Officer Reyes did not recall interacting with § 87(2)(b) or hearing anyone say to her, "Where the fuck are you going?" Officer Reyes accompanied Officer Hirsch to § 87(2)(b), because he became injured in the fall onto the ground. Officer Reyes returned to the stationhouse later in the night but did not know exactly when. She did not hear Officer Farren say that he hit § 87(2)(b) with his "fucking" gun. Before the date of this incident, Officer Reyes had arrested § 87(2)(b) but did not recognize § 87(2)(b) until after he was handcuffed and she learned his name.

Police Officer Fadi Mansour (PSA 1) Subject Officer

Police Officer Fadi Mansour was interviewed at the CCRB on June 8, 2007 (encl. 21). Officer Mansour, a § 87(2)(b)-old white man, is § 87(2)(b) and weighs § 87(2)(b). Officer Mansour is currently assigned to the Intelligence Bureau. Officer Mansour was assigned to the PSA 1 anti-crime team for a year-and-a-half and spent the same amount of time in the conditions team at PSA 1 previously. Officer Mansour's memo book for April 3, 2006 reflects that at 12:40 a.m., he conducted a vertical patrol at § 87(2)(b). At 12:45 a.m., two men were stopped in the lobby of the building. At 1:04 a.m., Officer Farren arrested one person and recovered a firearm. At § 87(2)(b), Officer Mansour was en route to § 87(2)(b) for an injured officer (Officer Hirsch) and arrestee § 87(2)(b) (encl. 20).

Officer Mansour testified that he was waiting for the elevator inside the lobby of § 87(2)(b) in order to conduct a vertical patrol within the building. When the elevator arrived, one man in the elevator § 87(2)(b) looked shocked upon seeing the officers and said, "Oh shit" under his breath. § 87(2)(b) exited the elevator and was trying to "hug" the wall on his way out of the building. Officer Farren observed § 87(2)(b) walking outside and yelled out, "Gun!" The second man § 87(2)(b) was attempting to intervene, as Officer Farren was trying to handcuff § 87(2)(b) by physically pushing past Officer Mansour to get to § 87(2)(b). Officer Mansour grabbed onto § 87(2)(b) in order to keep him away from § 87(2)(b) and told him that he would be arrested if he didn't stop interfering. § 87(2)(b) kept yelling out, "That's my brother. That's my brother." At this point, the other three officers were continuing to struggle with § 87(2)(b). Officer Mansour observed Officer Farren remove the firearm from § 87(2)(b)'s back right pocket and placed it into his own pocket. Officer Mansour had not previously seen the gun, because Officer Farren was standing at a side angle with a better view of the rear pocket while Officer Mansour was directly in front of § 87(2)(b). Officer Mansour frisked § 87(2)(b) so that he would feel secure in going over to assist the officers apprehend § 87(2)(b). Officer Mansour explained to § 87(2)(b) that he was going to frisk him because his "brother" was carrying a gun. As Officer Mansour frisked § 87(2)(b) he observed that § 87(2)(b) had a cell phone affixed to his right side on the belt. Over § 87(2)(b)'s left pocket, Officer Mansour felt a hard object that he determined could have potentially been a gun. Officer Mansour reached into this pocket only and removed only this item, which he determined was a second cell phone. By the time that Officer Mansour secured § 87(2)(b), § 87(2)(b)

§ 87(2)(b) and the officers fell onto the ground. § 87(2)(b) hit his head on the hard marble floor, which Officer Mansour could see and hear. § 87(2)(b) started to bleed from his eyebrow. Officer Mansour did not see any officer strike § 87(2)(b) with handcuffs, a gun, or any other object. Once § 87(2)(b) was on the ground, no officer struck him.

§ 87(2)(b)'s mother § 87(2)(b) came downstairs after § 87(2)(b) was handcuffed, but Officer Mansour never saw § 87(2)(b) attempt to approach § 87(2)(b). Officer Mansour did not see any officer push § 87(2)(b) or use the word “fuck” with her. Officer Mansour did not hear any officer say to § 87(2)(b) “I would have shot you.” Officer Hirsch and § 87(2)(b) shared an ambulance to the hospital and were accompanied by Officer Mansour. Inside the ambulance, § 87(2)(b) was muttering, “Sorry guys, I had to carry it. Someone was after me.” Officer Hirsch had obtained § 87(2)(b)'s pedigree information to complete a stop and frisk report but handed the information to Officer Reyes to do the report, because he needed to go to the hospital.

Sergeant John Todaro (PSA 1) Witness Officer

Sergeant John Todaro was interviewed at the CCRB on May 10, 2007 (encl. 19). Sgt. Todaro, a § 87(2)(b) old Hispanic man, is § 87(2)(b) and weighs § 87(2)(b). Sgt. Todaro's memo book reflects that at 1:04 a.m. on April 3, 2006, Officer Farren made an arrest at § 87(2)(b). At § 87(2)(b) the arrestee § 87(2)(b) was transported to § 87(2)(b). At 1:15 a.m., Sgt. Todaro was conducting administrative duties regarding the arrest and line of duty injuries sustained (to Officer Hirsch) (encl. 18).

Sgt. Todaro testified that Officers Farren, Reyes, Mansour, and Hirsch conducted a vertical patrol inside two housing developments, while Sgt. Todaro waited outside in the patrol van to secure the perimeter of the buildings and to protect the van from vandals. Sgt. Todaro was communicating with his officers via point to point radio. Officer Mansour called Sgt. Todaro to the lobby of § 87(2)(b) and sounded as though the officers were engaged in a struggle. When Sgt. Todaro arrived at the location about ten to fifteen seconds later, § 87(2)(b) was in handcuffs. One of the officers was holding a gun that § 87(2)(b) had been in possession of. There was another man present § 87(2)(b) but Sgt. Todaro never frisked him or saw any other officer do so. Upon reviewing the computerized stop and frisk report for § 87(2)(b) Sgt. Todaro said that he just reviewed the report afterwards and did not witness the stop or frisk. Sgt. Todaro did not recall seeing § 87(2)(b)'s mother § 87(2)(b) at the scene of the incident or anyone else trying to get close to § 87(2)(b). Sgt. Todaro believed that someone later came to the stationhouse for § 87(2)(b) but he did not know who he or she was. Sgt. Todaro never heard anyone say that they would have shot § 87(2)(b) or anyone cursing in front of the stationhouse.

Police Officer Erik Hirsch (PSA 1) Subject Officer

Officer Hirsch was temporarily unavailable to be interviewed by this investigation due to his reassignment to the Narcotics Bureau and his attendance in a required training class. § 87(2)(g)

According to an interview summary in CCRB case 200601119, Officer Hirsch is a § 87(2)(b) white man, who weighs § 87(2)(b) with brown hair and hazel eyes.

MEDICAL RECORDS

§ 87(2)(a) PBH §18(6)

POLICE DEPARTMENT DOCUMENTS

The PSA 1 command log notes the arrest of § 87(2)(b) at 1:15 a.m. and that he was removed to § 87(2)(b) from the scene of his arrest. § 87(2)(b) reportedly had a cut to his right eyebrow (encl. 25). The prisoner holding pen roster notes § 87(2)(b)'s arrival to the stationhouse at 2:45 a.m. and departure to Brooklyn Central Booking at 8:30 a.m. (encl. 26). The roll call for PSA 1 notes that Officers Farren, Reyes, Mansour, and Hirsch, and Sgt. Todaro were assigned to anti-crime (encl. 27). A SPRINT

report for this incident notes that an ambulance was called for § 87(2)(b) at 12:58 a.m. and arrived § 87(2)(b)

DISPOSITION OF CRIMINAL CASE

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

NOTICE OF CLAIM

On June 19, 2007, the New York City Comptroller's Office verified that § 87(2)(b) did not file a notice of claim against the City of New York regarding this incident (encl. 33n).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

CCRB History

This complaint is the first that § 87(2)(b) or § 87(2)(b) has filed with the CCRB (encl. 3) § 87(2)(b)

Officers Farren and Hirsch, both members of the service for four years have no previously substantiated CCRB complaints. Officers Reyes and Mansour, police officers for seven and five years respectively, have no previously substantiated CCRB complaints (encl. 2).

Conclusions and Recommendations

Police Officer Identification

Officer Farren acknowledged that he observed § 87(2)(b) in possession of a firearm and instigated the stop of § 87(2)(b) and § 87(2)(b) § 87(2)(g)

As the only female officer present for the apprehension of § 87(2)(b) Officer Reyes was easily identified as the officer who § 87(2)(b) alleged struck him with handcuffs. § 87(2)(b) identified Officer Farren by name in accusing him of striking § 87(2)(b) with a gun and Officer Farren acknowledged that he gained possession of § 87(2)(b)'s gun. Officer Mansour acknowledged frisking and searching § 87(2)(b) § 87(2)(g). § 87(2)(b) was uncertain of this officer's identity and said that it could have been the same officer who struck § 87(2)(b) with handcuffs (Officer Reyes) or another officer who looked very similar. § 87(2)(b) mistakenly believed that Officer Reyes was dressed in uniform. § 87(2)(g)

All of the officers agreed that the original basis for the stop of § 87(2)(b) and § 87(2)(b) was Officer Farren's observation of a gun in § 87(2)(b)'s waistband. The officers alleged that Officer Farren immediately observed the gun upon seeing § 87(2)(b) and that there was no initial stop or frisk of § 87(2)(b). § 87(2)(b) claimed that the officers first stopped him and requested his ID and asked for consent to search him. § 87(2)(b) acknowledged that he attempted to walk past the officers and out of the building but denied that he fought with the officers. § 87(2)(b) claimed that he was not frisked or searched until after he was handcuffed. § 87(2)(b) claimed that he saw unknown officers searching § 87(2)(b) before handcuffing him. In her intake statement to the CCRB, § 87(2)(b) claimed that Officer Farren frisked § 87(2)(b) and removed a gun from his waistband. § 87(2)(g)

§ 87(2)(b) In her sworn statement, § 87(2)(b) claimed that she happened upon § 87(2)(b) surrounded by a group of officers and looking at though he “wanted to talk.” § 87(2)(b) s hand suddenly went up in the air and someone yelled “gun” and Officer Farren removed an unknown item from § 87(2)(b) s person and struck him with it. In her sworn statement, § 87(2)(b) did not allege that any officer frisked or searched § 87(2)(b) before he was handcuffed and did not admit to specifically seeing a gun. § 87(2)(b) did not admit that § 87(2)(b) had a gun but claimed that he observed Officer Farren strike him with a gun. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Assessment of Evidence

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) In his statements to FDNY and § 87(2)(b) medical personnel, § 87(2)(b) repeatedly stated that he suffered an injury to his eyebrow only and that falling onto the ground caused this injury. § 87(2)(b) did not make any allegations of excessive force. (The FDNY ambulance call report identifies the laceration as being over the right eyebrow. § 87(2)(b)'s medical records from § 87(2)(b) repeatedly identify the laceration as being over his left eyebrow. § 87(2)(b)'s NYPD arrest photograph and photographs that § 87(2)(b) provided to the CCRB of § 87(2)(b)'s injury show a bandage over the right eyebrow only. There is a small laceration visible under the right eyebrow and there appears to be a bruise under § 87(2)(b)'s left eye.) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) testified that she arrived at the lobby of § 87(2)(b) after receiving a call from § 87(2)(b). This address is in the same housing complex of § 87(2)(b) but her apartment has a different mailing address (§ 87(2)(b)). § 87(2)(b) testified that he called § 87(2)(b) after § 87(2)(b) struck the ground and was in handcuffs. § 87(2)(g)

§ 87(2)(b) In her sworn statement to the CCRB, § 87(2)(b) backed away from her original assertion that she had seen Officer Farren remove a gun from § 87(2)(b)'s person and strike him with it. While § 87(2)(b) still maintained that she observed Officer Farren strike § 87(2)(b) with an unknown object, § 87(2)(b) denied that she specifically saw § 87(2)(b) carrying a gun. § 87(2)(b) also changed her testimony regarding Officer Reyes. § 87(2)(b) originally claimed that she observed Officer Reyes strike § 87(2)(b) with handcuffs, but she later claimed that she could not see what Officer Reyes used to strike § 87(2)(b). § 87(2)(g)

§ 87(2)(b) did not allege that Officer Reyes ever struck § 87(2)(b) with handcuffs and claimed that Officer Farren struck § 87(2)(b) with a gun while § 87(2)(b) was in handcuffs. § 87(2)(g)

Allegation A- Abuse of Authority: Inside § 87(2)(b) in Brooklyn, Police Officer Justin Farren stopped § 87(2)(b) and § 87(2)(b)

According to Barry Kamins' *New York Search and Seizure*, section 140.50(1) of the Criminal Procedure Law states that an officer can stop a person in a public place "when he reasonably suspects that such person is committing, has committed, or is about to commit either (a) a felony or (b) a misdemeanor defined in the penal law" (encl. 1a). § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **allegation A** be closed as **exonerated**.

Allegation B- Force: Inside § 87(2)(b) **in Brooklyn, Police Officer Erik Hirsch used physical force against** § 87(2)(b)

Allegation C- Force: Inside § 87(2)(b) **in Brooklyn, Police Officer Justin Farren used physical force against** § 87(2)(b)

Allegation D- Force: Inside § 87(2)(b) **in Brooklyn, Police Officer Christin Reyes used physical force against** § 87(2)(b)

§ 87(2)(g)
Patrol Guide procedure 203-11 authorizes officers to use the minimal amount of force necessary to effect an arrest (encl. 1f). § 87(2)(g)

§ 87(2)(g)
It is therefore recommended that **allegations B, C, and D** be closed as **exonerated**.

Allegation E- Force: Inside § 87(2)(b) **in Brooklyn, Police Officer Christin Reyes struck** § 87(2)(b) **with a blunt instrument.**

Allegation F- Force: Inside § 87(2)(b) **in Brooklyn, Police Officer Justin Farren struck** § 87(2)(b) **with a gun.**

§ 87(2)(g) § 87(2)(b) initially stated that Officer Reyes struck § 87(2)(b) with handcuffs and Officer Farren struck him with a gun. In her sworn statement, § 87(2)(b) testified that she could not see what objects the officers used to strike § 87(2)(b). § 87(2)(b) did not allege that Officer Reyes struck § 87(2)(b) with handcuffs. § 87(2)(g)
It is therefore recommended that **allegations E and F** be closed as **unfounded**.

Allegation G- Abuse of Authority: Inside § 87(2)(b) **in Brooklyn, Police Officer Fadi Mansour frisked** § 87(2)(b)

Officer Mansour testified that he frisked § 87(2)(b) while his colleagues were grappling with § 87(2)(b) and attempting to secure the firearm that he had been carrying. Officer Mansour stated that he frisked § 87(2)(b) so that he would feel secure leaving § 87(2)(b) unattended and assisting the other officers. At this point, § 87(2)(b) had been walking with someone who was known to be carrying a gun and had attempted to physically involve himself in § 87(2)(b)'s arrest. According to Kamins, "Generally speaking, a suspect's presence beside one who had recently committed a crime will not, by itself, justify a frisk. However, if circumstances lead a police officer to the reasonable inference that the officer should be concerned for his own safety, a frisk will be justified" (encl. 1c). § 87(2)(g)
In addition, Kamins noted that courts have begun to "focus on exigencies surrounding a street encounter in determining the legality of a stop and frisk. Decisions have upheld frisk where the failure to act immediately would have presented a

danger to the general public” (encl. 1e). § 87(2)(g)

It is therefore recommended that **allegation G** be closed as **exonerated**.

Allegation H- Abuse of Authority: Inside § 87(2)(b) in Brooklyn, Police Officer Fadi Mansour searched § 87(2)(b)

Officer Mansour acknowledged reaching into § 87(2)(b)'s pocket and removing a cell phone. Officer Mansour said that he removed this item, because upon feeling this object from the outside of the pocket he was not able to determine whether or not it represented a lethal weapon. Additionally, Officer Mansour testified that § 87(2)(b) had a second cell phone attached to his waistband. § 87(2)(g) § 87(2)(b) claimed that the officer removed all of the contents of his pocket and reviewed his identification. § 87(2)(g)

According to Kamins, when an officer conducts a frisk and observes a hard object that resembles a weapon, “he may reach in[to the pocket] to determine the nature of the object” (encl. 1b). § 87(2)(g)

It is recommended that **allegation H** be closed as **exonerated**.

Allegation I- Force: Inside § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **allegation I** be closed as **exonerated**.

Allegation J- Discourtesy: Inside § 87(2)(b) in Brooklyn, an officer spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) alleged that the officer who pushed her yelled out, “Where the fuck are you going?” when § 87(2)(b) walked away from the scene. § 87(2)(b) was uncertain about this officer’s identity and provided only a vague description of her: white or Hispanic woman, dressed in uniform, 5’2” and heavy build. § 87(2)(b) was not certain if the officer who cursed at her was the same officer who struck § 87(2)(b) with the handcuffs. Officer Reyes was identified as the subject of the handcuffs allegation, but she was dressed in plainclothes and not uniform. § 87(2)(g)

It is therefore recommended that **allegation J** be closed as **officer(s) unidentified**.

Allegation K- Discourtesy: Inside the PSA 1 stationhouse in Brooklyn, Police Officer Justin Farren spoke obscenely and/or rudely in the presence of § 87(2)(b)

§ 87(2)(b) alleged that at the PSA 1 stationhouse, she heard Officer Farren tell a group of officers that he had hit § 87(2)(b) with § 87(2)(b)'s own “fucking gun.” § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that
allegation K be closed as **unfounded**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: